#	Case Name	Tentative
		take judicial notice of the existence and contents of court records, but not the truth of the matters stated therein].) The case management conference is continued to November 23, 2026 at 9:00 a.m. in Department C28. Defendant shall give notice of this ruling.
54.	Naso v. Blackburn 2025-01519762	Defendants David Blackburn and CFG Investments, Inc.'s motion to strike portions of plaintiffs' Complaint is DENIED. (Code Civ. Proc., § 435, 436 [authorizing motion].) A motion to strike, like a demurrer, assumes plaintiffs' allegations as true. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255 ["In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth"].) The Complaint alleges sufficient facts showing defendants' knowledge of mold, water intrusion, and other defects, including prior to plaintiffs' residency, and intentional failure to disclose or repair same despite multiple requests, sufficient to support punitive damages allegations at the pleading stage. (Civ. Code, § 3294, subd. (c)(1) [authorizing punitive damages for "malice," i.e. "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others"]; Complaint, ¶¶ 25, 35, 37, 50, 54, 58, 61, 64.) As to attorney fees, there is no point in striking them, as there is no requirement they be pled at all. (*Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 497.) In any event, the Complaint adequately alleges a contractual basis for attorney fees. (Complaint, ¶ 73.) Moving defendants shall file an Answer to the Complaint within 10 days. The case management conference is continued to November 23, 2026 at 9:00 a.m. in Department C28. Plaintiffs shall give notice of this ruling.
55.		
56.	Fernandez v. FCI Lender Services, Inc.	Plaintiff Virginia Fernandez's motion for attorney fees is GRANTED in part. Code of Civil Procedure section 425.16, subdivision (c)(1) provides that a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's

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	2024-01374564	fees and costs. The statute expressly defines “defendant” to include “cross-defendant” and “complaint” to include “cross-complaint,” meaning cross-defendants are fully within the statute's fee-shifting framework. Here, it is undisputed that Fernandez prevailed on only one of the two causes of action attacked in the cross-complaint. That fact does not strip Fernandez of the right to statutory attorney fees. A cross-defendant need not succeed in striking every challenged cause of action to be considered a prevailing party under section 425.16. (*Mann v. Quality Old Time Service, Inc.,* (2006) 139 Cal.App.4th 328.) The relevant inquiry is whether the defendant obtained a practical benefit from the motion. (*City of Colton v. Singletary* (2012) 206 Cal.App.4th 751.) Here, Fernandez was successful in knocking out the claim for abuse of process. That is not insignificant. The fact Fernandez prevailed on the abuse of process claim had the “practical benefit” of “narrowing the litigation, thus impacting discovery, motion practice, and trial preparation.” (*Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 232–233, *as modified on denial of reh'g (Sept. 9, 2022).)* When a defendant partially succeeds on an anti-SLAPP motion but the work on successful and unsuccessful causes of action was overlapping, the court should first determine the lodestar amount for hours expended on the successful claims, and then consider the defendant's relative success in achieving their objective—but if the claims are truly intertwined, no apportionment is required at all. (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328.) For example, in *Cruz v. Fusion Buffet, Inc*.(2020) 57 Cal.App.5th 221, the court found no abuse of discretion in declining to apportion fees where meal and rest break claims were inextricably intertwined with other wage and hour claims. The burden remains on the fee applicant to demonstrate that the claims share a common core of facts or are otherwise intertwined such that apportionment is impractical. (*Harman v. City and County of San Francisco* (2007) 158 Cal.App.4th 407.) Here, Fernandez was given the opportunity to meet her burden showing *how* the claims of abuse of process and unfair business practices share a common core of facts or were so intertwined that apportionment is impractical. But Fernandez only concludes that they are without further explanation. That’s not sufficient for Fernandez to carry the burden of proof.